Internal review of FOI2015/25797

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Dear Sir/Madam,

I write in a personal capacity to request an internal review of my partially denied FOI request with the reference FOI2015/25797 (pertaining to meetings between senior BIS officials and Elsevier/Thomson Reuters).

Details in the request were denied on the basis of a Section 43 public interest test. However, I believe this to be misapplied here, for the following reasons:

1.) There is an ongoing public consultation through a Green Paper with respect to the use of metrics in the research assessment procedures in higher education (along with debates about publication practices and "open access"). The Minister for HE, Jo Johnson, met with Elsevier in the run up to this consultation on the 4th November 2015. Elsevier is one of only two companies in the world that possesses a sufficient metrics database to even attempt such an exercise. It is in the public interest to release the details of this meeting so that an effective national debate can be had. Without this information, it is not possible to fully participate in the ongoing national-level consultation on HE.

Indeed, previous cases have demonstrated that there is a particularly strong override in the favour of disclosure in cases like this: "The public interest in disclosure is particularly strong where the information in question would assist public understanding of an issue subject to current national debate, or improve the transparency and accountability of a particular function of Government" [Guidance, Part I, paragraph 3]. The use of metrics in HE, along with changes in scholarly publication practices (Elsevier's two areas of HE business), are currently under such national debate through the Green Paper. There is, therefore, strong precedent to disclose this information in the public interest.

2.) In the week that the Minister met with Elsevier, a tender was put out by BIS/HEFCE (reference: CR150082HEFCE) for a metrics database. HEFCE confirmed that this was on the instruction of BIS: "The recent higher education green paper has indicated that the Government wishes to consider options such as making greater use of metrics and other measures to 'refresh' the REF results. In line with HEFCE's ongoing policy development and analysis activities, we have been asked by BIS to investigate this further." Yet this flies in the face of a recent extensive metrics report that noted the dangers of a rushed metrics-driven approach. Again, Elsevier and Thomson Reuters are the only organisations that can provide the specifications requested in this tender on such short notice.

The major point of public interest here is to ensure the proper use of public funds on two fronts: firstly, to ensure that this tender was not put out as a closed foregone deal for Elsevier; and secondly, that this tender is not intended to duplicate and override a substantial public report, thereby wasting public money.

As a reminder: even if the interests of Elsevier are likely to be prejudiced, this is insufficient cause to withhold this information under the public interest test, which as above, is substantially weighted in favour of disclosure for reasons of ongoing national-level debate and for reasons of accountability of public expenditure.

Best wishes,

Martin Eve